

25NNCV00930 25NNCV00930

County: los-angeles

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Case Number: 25NNCV00930 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: June 26, 2026

Case No: 25NNCV00930 Trial Date: May 17, 2027

Case Name: Mackey v. Hoover, et al.

MOTION TO QUASH SUBPOENA

[CCP §§ 1985.3, 1987.1]

Moving Party: Defendant, Stephanie Hoover

Responding Party: Plaintiff, Julian Mackey

RELIEF REQUESTED:

An order quashing the deposition subpoena for production of business records served on Mercury Insurance Company c/o Randall Petro.

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle Negligence

2) General Negligence

SUMMARY OF FACTS:

Julian Mackey ("Plaintiff") alleges that on August 3, 2023, near the intersection of N. Victory Place and Lake Street, Stephanie Hoover ("Defendant") rear-ended Plaintiff's vehicle. The Complaint alleges that Plaintiff has sustained property damage and bodily injuries as a result of the collision.

ANALYSIS:

"When a subpoena requires the attendance of a witness or the production of books, documents or other things before a court, or at the trial of an issue therein, ..., upon motion reasonably made by the party, the witness, or any consumer described in Section 1985.3, or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare, including protective orders." (CCP § 1987.1) There is no requirement that the motion contain a meet-and-confer declaration demonstrating a good-faith attempt at informal resolution. (CCP § 1987.1) A motion to quash requires a separate statement, unless the party being subpoenaed did not provide any response to the subpoena. (Rules of Court, rule 3.1345(a)(5), (b)(6).)

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (CCP § 2017.010.)

Defendant moves to quash the subpoenas for business records issued by Plaintiff to Defendant's insurer, Mercury Insurance Company. The subpoena seeks the entire claim file related to the subject incident, various corresponding writings and communications, reports, photographs, video recordings, claim evaluations, writings related to any settlement or agreement in connection with the incident, and all non-privileged writings related to the matter. (Sep. Statement, pp. 2:5-7:14.) Defendant objects to the requests on grounds that they are overboard and irrelevant, seek privileged documents, violate privacy rights and are burdensome and duplicative.

Defendant's blanket objections are without merit. The requests are narrowly tailored to the subject incident and claim and are plainly relevant to the issues central to this litigation. It is not clear whose privacy rights are supposedly violated by the requests. Corporations have no constitutional right to privacy and therefore have no standing to assert such a right under the state or federal constitution. (See *Ameri-Medical Corp. v. Workers' Comp. Appeals Bd.* (1996) 42 Cal.App.4th 1260, 1287 [right to privacy applies to people, not to corporations.]) Moreover, the request for a car insurance claim file does not violate Defendant's privacy rights. Only serious invasions of privacy will bar discovery. (*Crab Addison, Inc. v. Superior Court* (2008) 169 Cal.App.4th 958, 966.) There is not an egregious invasion of privacy every time there is a request for private information. As to Defendant's objection that the subpoena is unduly burdensome or duplicative, this objection is only valid when the responding party is asserting an undue burden based on the "quantum of work required" to satisfy the production. (*West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County* (1961) 56 Cal.2d 407, 417.) There is no indication that it would be unduly burdensome for Mercury Insurance Company to produce a single claim file. To the extent Defendant claims that attorney-client privilege or the work product rule are implicated by a document described in the subpoena, such documents must be described on a privilege log.

Request for Sanctions

"[T]he court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (CCP § 1987.2, subd. (a).)

Plaintiff requests sanctions in the amount of \$1,750.00. The Court finds that the amount requested is reasonable. Thus, the request for sanctions is GRANTED.

RULING:

Defendant Stephanie Hoover's Motion to Quash Subpoena is DENIED.

Plaintiff Julian Mackey's request for sanctions GRANTED.

Monetary sanctions sought by the opposing party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1,750.00 (3.5 hours @ \$500/hour) [3.5 hours requested] [Amount Requested \$1,750.00], which sum is to be awarded in favor of Plaintiff Julian Mackey and against Defendant Stephanie Hoover and Defendant's attorney of record, jointly and severally, payable within 30 days. (CCP, § 1987.2, subd. (a))

Counsel for opposing party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.